

25STCV02493 25STCV02493

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-31

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C311%2C07%2F31%2F2026

Source SHA-256: 34d2e626c6a1a95805706077b032363487f40b53c1decc57a820631a607226af

Case Number: 25STCV02493 Hearing Date: July 31, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV02493

BLANCA

AREVALO vs COUNTY OF LOS ANGELES, et al.

July 31, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT COUNTY OF LOS ANGELES' MOTION TO COMPEL INDEPENDENT MENTAL
EXAMINATION OF PLAINTIFF BLANCA AREVALO.

RULING:

The unopposed Motion is granted.

On or before August 7, 2026, Defendant shall serve a revised proposed order that addresses all required elements. ““An order granting a physical or mental examination shall specify the person or persons who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope and nature of the examination.”” (Carpenter v. Superior Court (2006) 141 Cal.App.4th 249, 259-261; Code Civ. Proc., §2032.320, subd. (d).)

Defendant to give notice.

I.

BACKGROUND

On January 29, 2025, BLANCA AREVALO (Plaintiff) filed a Complaint against COUNTY OF LOS ANGELES, LOS ANGELES COUNTY SHERIFF'S DEPARTMENT, ROBERT LUNA, HOLLY FRANCISCO, JACK EWELL, and THOMAS GIANDOMENICO (Defendants).

On May 22, 2025, Plaintiff filed a First Amended Complaint (FAC) for:

(1)
RACIAL DISCRIMINATION IN VIOLATION OF FEHA (CAL. GOV. CODE § 12940(A));

(2)
SEX DISCRIMINATION IN VIOLATION OF FEHA (CAL. GOV. CODE § 12940(A));

(3)
HOSTILE WORK ENVIRONMENT AND WORKPLACE HARASSMENT IN VIOLATION OF FEHA (CAL. GOV. CODE § 12940(J)); and

(4)
FAILURE TO TAKE CORRECTIVE ACTION IN VIOLATION OF FEHA (CAL. GOV. CODE § 12940(K)).

Plaintiff alleges that, “Plaintiff has been harassed, discriminated against, and forced to endure a racist and

sexist hostile work environment because of Defendant LASD's apparent want to maintain the white-male status quo.” (FAC, ¶ 1.)

On June 16, 2026, Defendant filed the Motion for a Mental Examination of Plaintiff.

There is no Opposition filed as to this matter.

II.

LEGAL STANDARD

Except for defense physicals in personal-injury actions, and stipulated examinations, judges' orders are required for mental or physical examinations, based upon showings of good cause. (Carpenter v. Superior Court (2006) 141 Cal.App.4th 249, 259; Code Civ. Proc., §2032.320, subd. (a).)

Parties moving to compel examinations must show a reasonable and good faith attempt to stipulate to the relief. (Code Civ. Proc., §2032.310, subd. (b).)

An examination is limited to the continuing (not past) injuries or condition that are in controversy in the litigation. (Code Civ. Proc., §2032.0202(a); Doyle v. Superior Court (1996) 50 Cal.App.4th 1878, 1886-1887; Vinson v. Superior Court (1987) 43 Cal.3d 833, 839.)

Courts have discretion to order the production of test materials, test data and audio recordings, as to Independent Medical Examinations. (Randy's Trucking, Inc. v. Superior Court (2023) 91 Cal.App.5th 818, 837.)

And plaintiffs cannot insist on their attorneys' presence at a psychiatric examination, unlike a physical examination, absent evidence that the examiners will act inappropriately, in support of the court's discretion. (Toyota Motor Sales, U.S.A., Inc. v. Superior Court (2010) 189 Cal.App.4th 1391, 1396.)

III.

ANALYSIS

Defendant seeks an Order compelling Plaintiff to attend a mental examination, after meeting and conferring failed to resolve the issue.

The failure to file a proper and timely opposition in trial court creates a waiver of the issues on any appeal. (Bell v. Am. Title Ins. Co. (1991) 226 Cal.App.3d 1589, 1602; Cabrini Villas Homeowners Assn. v. Haghverdian (2003) 111 Cal.App.4th 683, 693.)

There is no Opposition filed raising any issues for the Court to address.

IV.

CONCLUSION

The unopposed Motion is granted.